

Kirti Kushwaha v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 30 October 2025 · Writ-C No. 37278 of 2025 · **Writ petition dismissed; no order as to costs.**

HEADNOTE

A donee under a gift deed from her father sought quashing of the licensee's 28.04.2025 order and a mandamus for a fresh connection without paying remaining electricity dues on the house. Held, mere execution of a gift deed does not exclude liability for those dues. Under Clause 4.4f(i) of the Electricity Supply Code, 2005 an application is processed only after dues are cleared. Petition dismissed.

FACTUAL SUMMARY

Kirti Kushwaha challenged an order dated 28.04.2025 of the distribution licensee and sought a mandamus for a fresh electricity connection. She relied on a gift deed dated 04.03.2021 executed by her father, arguing that she was not liable for remaining electricity dues on the house and that the department was bound to issue a new connection. The licensee opposed the petition, submitting that Clause 4.4f(i) of the Electricity Supply Code, 2005 permits processing of an application only after dues are cleared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4f(i)

gift deed does not wipe electricity dues; application processed after clearing dues

HOLDING

Mere execution of a gift deed in the applicant's favour does not exclude liability to pay electricity dues on the premises. Clause 4.4f(i) of the Electricity Supply Code, 2005 provides that an application can be processed only after dues are cleared. The writ petition seeking a fresh connection without paying remaining dues was dismissed. ¶ 4,6-7

FLAG Cited as Clause 4.4f(i); unpunctuated numbering is ambiguous (possibly 4.4(f)(i)). Not silently recast as catalog 4.44 or 4.4(e).

PRINCIPLE TAGS

gift-deed-does-not-wipe-electricity-dues-application-processed-after-cle A donee under a gift deed from her father sought quashing of the licensee's 28.04.2025 order and a mandamus for a fresh connection without paying remaining electricity dues on the house. Held, mere execution of a gift deed does not exclude liability for those dues.. ¶ 4,6-7